

Bay Area Sheriff to Make Case for ALPR Technology

Marin County's Sheriff Jamie Scardina will ask the Board of Supervisors to approve the installation of 31 automated license plate readers in unincorporated areas to help stop vehicle theft and other crimes.

November 28, 2023 • Richard Halstead, The Marin Independent Journal

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(TNS) — Marin County's sheriff will ask the Board of Supervisors to approve the installation of 31 automated license plate readers in unincorporated areas.

Sheriff Jamie Scardina wants to install the cameras to deter and prevent retail theft, vehicle theft and the theft of vehicle parts such as catalytic converters. He will make the request to supervisors at their meeting on Tuesday.

According to the sheriff's office, there were 597 reports of property crime in Marin from June 1, 2022, to May 31, 2023. They included 207 thefts, 161 burglaries, 102 instances of vandalism, 75 motor vehicle thefts, eight cases of shoplifting and one case of arson. During that same period there were also 93 reports of shots being fired.

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"Our objective here is to make the streets of Marin County safer by deterring any criminal activity that comes through our county," Scardina said.

Scardina plans to present his proposal on Tuesday because Senate Bill 34, signed into law by Gov. Jerry Brown in 2015, requires a public agency that intends to operate an automatic license plate recognition system (ALPR) to provide an opportunity for public comment at a regularly scheduled public meeting.

The cameras would be installed at nine locations where a high concentration of such crimes occur at choke points where there are only one or two ways in and out of the area.

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The general areas covered would include Marin City; Strawberry; Greenbrae; Oak Manor near Fairfax; the Santa Venetia, Peacock Gap, Marinwood and Lucas Valley neighborhoods near San Rafael; the east and west ends of Atherton Avenue in Novato; and the east and west ends of Indian Valley Road near Novato.

Several fixed cameras would be placed at each location to monitor vehicles as they enter and exit. The cameras will record an image of the rear of each vehicle, including its license plate. That way sheriff's deputies will be able to review the

images to determine which vehicles were in the vicinity when a crime occurred.

"Let's say we have five vehicles that get broken into in Marinwood between 3 and 5 o'clock in the morning," Scardina said. "We can go back through that system and find all the vehicles that came in and out of that particular area during that time frame."

Scardina expects that in addition to providing investigative leads, the cameras will deter potential criminals. The system can also help law enforcement officers spot and recover stolen vehicles and locate vehicles involved in other crimes.

The sheriff's office once had 12 ALPRs mounted on several vehicles, but none of them are operational. The system, which was operated by Vigilant Solutions, was over 12 years old and is no longer serviceable by the manufacturer, said sheriff's Sgt. Adam Schermerhorn.

In June 2022, the sheriff's office settled a lawsuit filed by three Marin residents aided by the American Civil Liberties Union and the Electronic Frontier Foundation, a San Francisco digital rights organization. The group claimed the sheriff's office was violating state law by sharing license plate data with U.S. Immigration and Customs Enforcement and other federal and out-of-state law enforcement agencies.

The lawsuit was preceded by a 2020 report by California Auditor Elaine Howle that criticized the Marin County Sheriff's Office and three other California law enforcement agencies for failing to fully implement requirements contained in SB 34 for protecting privacy when using ALPR systems. SB 34 prohibits sharing and transferring ALPR information with any agencies other than in-state agencies.

The sheriff's office was paying Vigilant Solutions to manage its software, and Vigilant had been sharing the information with law enforcement agencies that had been approved by the FBI.

Former sheriff Robert Doyle noted at the time that no evidence was presented that any of the shared information resulted in the arrest or deportation of any undocumented immigrants. As part of the settlement, Doyle agreed to ensure that his department's ALPR data would no longer be shared with agencies outside of

California.

Under Scardina's proposal, the new system would be operated by the Flock Group of Atlanta, Georgia. Data from the cameras would be encrypted and stored in the cloud, in a network of remote servers operated by Amazon Web Services. All data would be permanently deleted after 30 days on a rolling basis.

Police departments in Novato, Sausalito, Tiburon and Belvedere are already using Flock-maintained ALPR cameras, and San Rafael is in the process of doing so.

Scardina, in a staff report to supervisors, said the placement of the cameras "will not be predicated upon bias-based policing."

"As crime patterns are not static," he wrote, "the evaluation process will be dynamic and will continuously identify areas of high crime activity in a way that is responsive to real-time community needs."

A survey conducted in February by the Phoenix Project, a Marin City organization founded by Felecia Gaston, found that 63% of respondents supported the use of surveillance cameras in the neighborhood, with some recommending the only entrance and exit to the community as a possible location. The survey was conducted after a Jan. 26 stabbing in Marin City and firearm homicides in 2022.

"The majority of people surveyed did state that safety in our community is a big concern," Gaston wrote in an email, "especially because we have so many unfamiliar faces and new people who visit in common areas like at the shopping center and the entrance into Marin City."

Jeannie Fitzgerald and Bill and Kara Atkinson, the owners of Marinwood Market, wrote in an email, "As we have been the victims of multiple thefts over the past year, we would support the cameras to help deter crime."

Lisa Bennett, however, wrote in an email, "Flock has a much greater potential to violate civil rights and create a dangerous level of surveillance, particularly in communities like Marin City where people of color are overpoliced already."

"Many people don't realize that the Flock system includes the ability for regular home owners to share their cameras into the cloud and for all of these cameras across the country to create a giant system of mass surveillance," Bennett wrote.

Tara Evans wrote in an email that "one compromise the supervisors could immediately enact that would work as a privacy-protective oversight measure is have all data captured by the Sheriff's office erased after 3 minutes as other states like New Hampshire are doing."

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